

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Edward Tsigel	Team: Squad #04	CCRB Case #: 202106346	☒ Force ☐ Discourt. ☒ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 10/19/2021 8:45 AM, Thursday, 02/17/2022 12:00 AM	Location of Incident: 8th Street subway station (downtown W train platform at East 8th street and Broadway); CCRB	18 Mo. SOL 4/19/2023	Precinct: 06
Date/Time CV Reported Wed, 10/20/2021 9:03 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 10/20/2021 9:03 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Joseph Vincent	23708	946375	006 PCT
2. PO Grace Roserotapia	21698	968766	006 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Joseph Vincent	Force: Police Officer Joseph Vincent used physical force against § 87(2)(b)	A . Substantiated
B . PO Joseph Vincent	Abuse: Police Officer Joseph Vincent refused to provide his shield number to § 87(2)(b)	B . Substantiated
C . PO Grace Roserotapia	Abuse: Police Officer Grace Roserotapia refused to provide her shield number to § 87(2)(b)	C . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
G . PO Joseph Vincent	Untruthful Stmt.: Police Officer Joseph Vincent provided a false official statement to the CCRB on February 17, 2022.	G . Substantiated
H . PO Grace Roserotapia	Untruthful Stmt.: Police Officer Grace Roserotapia provided a false official statement to the CCRB on February 17, 2022.	H . Substantiated

Case Summary

On October 20, 2021, § 87(2)(b) filed this complaint on the CCRB website.

On October 19, 2021, at 8:45 AM, in the 8th Street W subway station in Manhattan, § 87(2)(b) noticed Police Officer Joseph Vincent and Police Officer Grace Roserotapia, both of the 6th Precinct, leaning against the wall on the platform without masks on. He approached the officers and requested that they put their masks on. After a brief conversation about the masks, PO Vincent grabbed § 87(2)(b) and pushed him out of the train station (**Allegation A – Force – Substantiated**). § 87(2)(b) requested PO Vincent's and PO Roserotapia's shield numbers and they both refused to provide them to him (**Allegations B and C – Abuse of Authority – Substantiated**).

§ 87(2)(g), § 87(4-b)

PO Vincent and PO Roserotapia provided false official statements to the CCRB on February 17, 2022 (**Allegations G and H – Untruthful Statement**).

The IAB conducted a concurrent investigation in which allegations of not wearing personal protective equipment (PPE), and failure to provide shield numbers were substantiated against both PO Vincent and PO Roserotapia (BR 14).

At the time of this incident there was a mask mandate in New York City which required everyone in train stations to wear a face covering (BR 17).

§ 87(2)(g)

No arrests were made, or summons issued as a result of this incident.

The CCRB received one cellphone video from § 87(2)(b) (BR 05), one cellphone video from witness § 87(2)(b) (BR 06) and MTA surveillance footage (BR 04) of this incident.

Findings and Recommendations

Allegation (A) Force: Police Officer JOSEPH VINCENT used physical force against § 87(2)(b)

On October 19, 2021, § 87(2)(b) (BR 01) was commuting to work in the morning on a downtown W train. At 8:45 AM his train arrived at the 8th Street subway station in Manhattan, and he exited the train onto the downtown platform and walked towards the station exit. He noticed PO Vincent and PO Roserotapia leaning against the wall on the platform without masks on. It is undisputed that he approached PO Vincent (BR 02) and PO Roserotapia (BR 03) and requested that they put their masks on. They refused to put their masks on and § 87(2)(b) continued to repeatedly ask them to do so. PO Vincent then told § 87(2)(b) that he was being disruptive and approached him and grabbed him by his arms. PO Vincent pushed § 87(2)(b) backwards towards the station exit and pushed him against the emergency door. PO Roserotapia opened the emergency door and PO Vincent pushed § 87(2)(b) out of the station. The officers closed the emergency door and returned to where they were initially standing.

A bystander named § 87(2)(b) witnessed this incident and recorded it on her cell phone. She posted her cell phone video onto Twitter and the CCRB obtained that video from Twitter. The CCRB was unable to obtain a statement from § 87(2)(b) (BR 18).

PO Vincent (BR 02) stated that § 87(2)(b) continued to get closer to him and began to stomp with his feet, make punching motions in the air, and was screaming at the top of his lungs about wearing a mask. § 87(2)(b) was preventing people on the platform from passing him because he was standing too close to the edge and people were afraid of him. PO Vincent believed that § 87(2)(b) was being disruptive and was a danger to bystanders and both himself and PO Roserotapia, so he grabbed § 87(2)(b) and pushed him out of the station to eject him. § 87(2)(b) resisted him by leaning his body in the opposite direction of which he was being pushed.

From 44:40 to 46:35 of MTA video 1 (BR 04), § 87(2)(b) approaches PO Vincent and

PO Roserotapia and speaks to them. There is no audio attached to this footage. § 87(2)(b) remains at least four feet away from the officers the entire time and has his phone in his hand. At no point is § 87(2)(b) seen stomping his feet or making any punching motion. § 87(2)(b) stands near the column and does not prevent any people from passing him. At least eleven people can be seen calmly passing by him. At 46:35, PO Vincent suddenly approaches § 87(2)(b) grabs him by his arms, pushes him out of the station and ejects him. At 47:05 the officers return to where they were initially standing.

From 0:00 to 2:00 of § 87(2)(b) cell phone video (BR 05), § 87(2)(b) approaches PO Vincent and PO Roserotapia and continues to ask them to put on their masks and they refuse to do so. § 87(2)(b) raises his voice but does not make any verbal or physical threats towards the officers or any bystanders. At 2:00, PO Vincent approaches him and pushes him out of the train station and tells him he is being disruptive.

§ 87(2)(b) cell phone video (BR 06) is consistent with the other footage and provides the best angle of PO Vincent pushing § 87(2)(b) out of the train station.

NYPD Patrol Guide Procedure 221-01 (BR 07) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. Officers must consider the immediacy of the perceived threat or harm to members of service.

At the time of this incident there was a mask mandate in New York City which required everyone in train stations to wear a face covering (BR 17).

§ 87(2)(b) approached PO Vincent and PO Roserotapia to request that they abide by the mask mandate which was in place at the time of this incident. § 87(2)(b) made repeated requests to both officers to which they refused. § 87(2)(b) persisted and as a result, PO Vincent grabbed, pushed, and ejected § 87(2)(b) out of the train station. Video evidence shows that § 87(2)(b) was standing a reasonable distance away from PO Vincent and did not make any threatening body motions towards anyone or prevent anyone from passing him on the platform. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation A** be **Substantiated**.

Allegation (B) Abuse of Authority: Police Officer JOSEPH VINCENT refused to provide his shield number to § 87(2)(b)

Allegation (C) Abuse of Authority: Police Officer GRACE ROSEROTAPIA refused to provide her shield number to § 87(2)(b)

§ 87(2)(b) (BR 01) stated that during this incident he requested PO Vincent's and PO Roserotapia's shield numbers and neither of them provided them to him.

From 0:25 to 0:45 of § 87(2)(b) cell phone video (BR 05), § 87(2)(b) asks PO Vincent for his shield number three times and each time PO Vincent tells him that he cannot hear him. At 2:15, after § 87(2)(b) is ejected from the station, he asks PO Vincent and PO Roserotapia for their badge numbers five times, and they do not respond. The officers begin to walk away. At 2:32, PO Gilbert loudly says, "Ma'am tell me your badge number right now." PO Roserotapia ignores his request and walks away from the station exit. Between 2:25 and 2:37, § 87(2)(b) clearly asks PO Vincent and PO Roserotapia for their badge numbers and there is no background noise present.

PO Vincent (BR 02) and PO Roserotapia (BR 03) both stated that they did not hear § 87(2)(b) ever ask them for their shield numbers and therefore did not provide them to him. They mentioned that it was difficult to hear § 87(2)(b) because there was too much background noise in the train station and because he was wearing a mask.

PO Roserotapia stated that she could have heard § 87(2)(b) say "Ma'am" but did not hear the rest of the request. PO Roserotapia also stated that she did not believe that § 87(2)(b)

asked her for her badge number because he said “Ma’am” instead of officer. She said that there was no other female officer at the location but there was another female civilian so he could have been referring to her and not PO Roserotapia.

PO Vincent and PO Roserotapia were shown § 87(2)(b) cell phone footage (BR 05). They both stated that they were able to hear § 87(2)(b) request their shield numbers in the video but were unable to hear him at the time of the incident.

Patrol Guide procedure 203-09 (BR 08) states that officers are required to state their shield number courteously and clearly to anyone who requests it.

§ 87(2)(g)

It is therefore recommended that **Allegations B and C** be **Substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Allegation (H) Untruthful Statement: Police Officer Grace Roserotapia provided a false official statement to the CCRB on February 17, 2022.

As per **Administrative Guide 304-10** (BR 13), a false official statement is an intentional statement that a member of service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which a statement is made. Officers are prohibited from making a false official statement.

_____ It

is therefore recommended that **Allegations G and H be Substantiated.**

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]

- Police Officer Joseph Vincent has been a member of service for 14 years and has been a subject in one other CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- Police Officer Grace Roserotapia has been a member of service for 2 years and has been a subject in one other CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of February 24, 2022, a Notice of Claim request from the New York City Office of the Comptroller is pending and will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 4

Investigator:	<u>Edward Tsigel</u>	<u>Investigator Edward Tsigel</u>	<u>3/10/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Raquel Velasquez</u>	<u>IM Raquel Velasquez</u>	<u>3/16/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date